

International Boundary and Water Commission

United States and Mexico

United States Section

Performance Work Statement (PWS)
Falcon & Amistad Power Plants
Testing Power Transformers, Hydro Generators and
High Voltage Breakers Program.

Recurrent Contract FY26-FY28

Starr & Valverde Counties, Texas

April 07, 2026



International Boundary and Water Commission

United States and Mexico

United States Section

Operations and Maintenance Division



SECTION 1 PROJECT SPECIFIC INFORMATION

1.1 Project Overview

The United States Section of the International Boundary and Water Commission (USIBWC), Falcon and Amistad Power Plants, located at FM2098, 1 Reservoir Rd. Falcon Heights, TX. 78545 and Texas 349 Spur Del Rio, TX 78540. Solicitate a recurrent contract (RC) to test from FY26 thru FY28 the following critical equipment 138 KV High Voltage Breakers, Hydro Power Generators and 138 KV Power Transformers for both Power Plants. The recurrent contract includes to inspect, clean, lube and perform several electrical tests in all the protective High Voltage Breakers, Hydro Generators and Power Transformers as part of the inspections and preventive maintenance to maintain the equipment functional.

1.2 General

This is a Recurrent Contract for three (3) years to test all the 138 KV Power Transformers, Hydro Power Generators and 138 KV High Voltage Breakers identified in the Falcon and Amistad Power Plants. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such Contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.3 Description of Services

The Vendor is responsible to disassemble/assemble, clean, lube, and perform all the tests required for four (4) 138 KV Protective Breakers, Five (5) Hydro Power Generators and Five (5) 138 KV Power Transformers critical equipment identified in both Power Plants. Also, The Vendor shall provide all personnel to perform the work required, provide all supplies, all electrical testing equipment for this recurrent contract.

Finally, the Vendor shall provide all tools, and supervision necessary to perform this recurrent contract as defined in this Performance Work Statement except for those items specified as government furnished property and services.

1.4 Objective

The main objective is to perform electrical test/inspection as part of the preventive maintenance required for all the High Voltage Breakers, Hydro Power Generators and Power Transformer identified in Falcon and Amistad Power Plants. This testing and maintenance program will improve safety and reliability in the power plants to continue with uninterrupted power generation. USIBWC/ Falcon/Amistad Power Plants requests the Vendor to provide pricing for all items listed below.

1. Perform visual inspection in all identified High Voltage Breakers, Hydro Generators and Power Transformers.



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2. Identified all the electrical tests needed and required by IEEE/NERC/ERCOT/Texas RE and resolute the actual conditions of the High Voltage Protective Breakers, Hydro Power Generators and Power Transformers.
3. Perform all the electrical testing on the Hydro Power Generators, Power Transformers, and High Voltage Breakers.
4. Provide all the testing equipment, material and labor required to perform this recurrent contract.
5. Perform and develop a final report for each year mentioned on this recurrent contract.

1.5 Project Location

- A. There are going to be two (2) USIBWC locations Falcon Power Plant is located at FM2098, 1 Reservoir Rd., Falcon Heights, Texas 78545. The second location would be Amistad Power Plant at Texas 349 Spur Del Rio, TX 78540
- B. The work is located completely within the United States but is adjacent to the international border with Mexico.
- C. Access to the Falcon and Amistad Power Plant requires crossing through the United States Port of Entry and complying with proper documentation (passports or other) as required by U.S. Customs and Border Protection officials.

1.6 Period of Performance

- A. The Contractor shall complete work within 240 calendar days after the contract has been awarded on the First Base Year (FY26), and within 180 days after new Fiscal Years for Option Year One (FY27) and Final Option Year (FY28) or other dates specified by Power Plants Superintendents.

1.7 Investigation of Site Conditions

- A. Contractors are encouraged to attend an agency organized site visit. Site visits may be scheduled for Falcon Power Plant by General Engineer Edi Delgado at 956-363-0119 or edi.delgado@ibwc.gov. and for Amistad Power Plant by Power Plant Superintendent Juan Escobar at 830-422-6823 or juan.escobar@ibwc.gov While attending the site visit all contractors must and the use of personal protective equipment (PPE) (i.e., mask and gloves). Contractors will not be permitted access to IBWC facilities without proper PPE. Virtual site visits (video/photographs) are not permitted.
- B. Submission of a quote shall be conclusive evidence that the Contractor has reviewed, investigated, and acknowledged all items below.
 1. Conditions bearing upon transportation, disposal, handling, and storage of materials.
 2. The availability of labor, water, electric power, and roads.
 3. Uncertainties of weather and similar physical conditions at the site.



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4. The conformation and conditions of the ground.
 5. The character of equipment and facilities needed preliminary to and during work performance.
- C.** Submission of a quote shall be conclusive evidence that the Contractor has investigated and is satisfied as to the conditions to be encountered, the character, quality, and work to be performed, and the quantities of materials to be furnished.
- D.** Submission of a quote constitutes agreement that Contractor has provided written notice of all conflicts, errors, ambiguities, and discrepancies discovered in PWS, that responses to these written notices are acceptable to Contractor, and that PWS is enough to indicate and convey understanding of all terms and conditions for performing and furnishing required work.
- E.** Contractor has the sole responsibility to make such independent investigation and examination as they deem necessary to satisfy themselves as to the conditions to be encountered in the performance of work and the quantities required to complete the work in accordance with the PWS.
- F.** The Government assumes no responsibility for any understanding reached or representation made concerning conditions which can affect the work by any of its officers or agents before the execution of this Contract, unless that understanding, or representation is expressly stated in this Recurrent Contract.
- G.** Any failure of the Contractor to take the actions described and acknowledged in this paragraph will not relieve the Contractor from responsibility for estimating properly the difficulty and cost of successfully performing the work, or for proceeding to successfully perform the work without additional expense to the Government.

1.8 Duty to Inquire

- A.** Contractor shall review the full PWS.
- B.** If during review of these items, the Contractor finds discrepancies, omissions, conflicts, defects, errors, or ambiguities, they have a duty to inquire and notify the Contracting Officer prior to the question submission deadline as established in the solicitation. The Contractor shall also inquire about items that are unclear or open to interpretation.
- C.** The Contractor shall take no advantage of any item of which they have a duty to inquire.

1.9 Work Restrictions

- A.** The Contractor is responsible for conducting business between the hours of 7:00 AM through 5:30 PM (Central Time), Monday through Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government-directed facility closings.
- B.** The Contractor may request different working hours and must submit in writing to the Contracting Officer (CO). The USIBWC may be unable to accommodate different working hours.



1.10 Department of Homeland Security

In any event the staff of the US Department of Homeland Security (DHS, also known as US Customs and Border Protection or CBP) alerts and directs any field crews to stop work for any security reasons in the area, the Contractor shall consider this as top priority and fully always cooperate with the directions of DHS until the security alert is cleared by the DHS. In addition, the Contractor shall contact and coordinate with the CO and Contracting Officer Representative (COR) for any additional steps to be taken during and after the security alert.

SECTION 2 PROJECT REQUIREMENTS

- A. Testing All High Voltage Breakers, Hydro Generators and Power Transformers will be Schedule on FY26 Base Year.
- B. Testing All High Voltage Breakers, Hydro Generators and Power Transformers will be Schedule on FY27 as a First Option Year.
- C. Testing All High Voltage Breakers, Hydro Generators and Power Transformers will be Schedule on FY28 as a Final Option Year.

2.2 General

This recurrent contract for testing services shall include providing all the electrical testing equipment, cleaning supplies, work/labor to perform this project.

- A. The Contractor shall review the electrical one-line diagram for Falcon and Amistad Power Plants to develop and confirm all the electrical devices mentioned in this PWS.
- B. The Contractor shall create a testing procedure and test schedule program for all electrical protective devices mentioned in this PWS.
- C. The testing inventory shall include all the protective breakers and transformers, and with type of test required:

EQUIPMENT NEEDS TO BE INSPECTED AND TESTED

Falcon Power Plant

- 1. Three (3) Power Transformers 138 KV/6.9KV
 - a) Full Power Factor Test
 - b) Resistance Test.
 - c) Oil Particles/Viscosity Examination Test
 - d) Turn Ratio Test



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2. (3) Three High Voltage 138 kV Breakers Rated 1200 Amps SF6 Gas Type (Switchyard).

- a) Exercise Breakers
- b) Contact resistance
- c) Hi-Pot Test
- d) Resistance Test.

3. Three (3) Hydro Generators 6.9 KV/10.5 MW with Rotor in Place.

- a) DC Ramped Voltage Insulation/Megger Testing (Individual Winding)
- b) Dissipation Factor or Power Factor (Individual Winding)

Amistad Power Plant

1. Two (2) Power Transformers 138 KV/13.5 KV

- e) Full Power Factor Test
- f) Resistance Test.
- g) Oil Particles/Viscosity Examination Test
- h) Turn Ratio Test

2. One (1) High Voltage 138 kV Breakers OCB Type Rated 1200 Amps. (Switchyard).

- e) Exercise Breakers
- f) Contact resistance
- g) Hi-Pot Test
- h) Resistance Test.

3. Two (2) Hydro Generators 13.5 KV/33 MW with Rotor in Place.

- a) DC Ramped Voltage Insulation/Megger Testing (Individual Winding)
- b) Dissipation Factor or Power Factor (Individual Winding)

- D.** The Contractor shall provide and install all electrical supplies (tape, hardware required, etc.), required to perform this project.
- E.** The Contractor shall remove all the hardware connections, clean and set up the connections back after the testing is completed in all the Transformers and Protective Breakers.
- F.** The Contractor is responsible for disconnecting/ connect back the Winding Delta Connection on the Generators to perform individual winding testing in all Five (5) Generators.



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- G.** The Contractor is responsible for connecting back the Winding Delta Connection in all Five (5) Generators and provide all the supplies required to secure the connections (Different types of Electrical Tapes are required to secure back the Winding Closed Delta Connection)
- H.** The Contractor shall provide a testing report with all results and maintenance recommendations.
- I.** The Contractor shall submit a project schedule to be reviewed and approved by the Power Plant Superintendents.
- J.** Testing Procedures and Tests Required proposal would be reviewed and approved by COR and Power Plant Superintendents. All testing requirements would be under IEEE standards, National Electrical Safety Codes (NESC), and under OSHA Standards.
- K.** The Contractor would be responsible for providing any additional material, equipment, and special tools to perform this project.
- L.** The Contractor shall include all mechanical, electrical, and miscellaneous testing equipment required to perform this project.
- M.** IBWC personnel will start the generators, transformers, and Breakers after all tests are completed to verify all electrical equipment works correctly and Contractors shall witness the startup procedures.
- N.** All Contractor personnel shall sign in inside of Main Buildings (Falcon and Amistad Field Office) prior to access at the Power Plants.
- O.** The Contractor shall submit a Job Safety Analysis (JSA) Form filled out to be reviewed by Power Plant Personnel.
- P.** The Contractor shall conduct a Safety Meeting with all the personnel involved in the project and Power Plant Personnel prior to starting the project. In addition, daily safety meetings shall be conducted at the start of each workday.

2.3 Clean-Up and Disposal of Waste Materials

- A.** The Contractor shall be responsible for the cleanup and disposal of waste materials and rubbish from the site, power plant(s), and staging area(s).
- B.** The disposal of waste materials and rubbish shall be in accordance with applicable Federal, state, and local laws and regulations and with the requirements in this Contract. Should a conflict exist in the requirements for cleanup and disposal of waste materials, the most stringent requirements shall apply.
 - 1.** All waste unless otherwise noted in these specifications shall be disposed of at a licensed landfill or waste disposal facility.



2. Recyclables
 - a. The Contractor shall dispose of recyclable and reusable products through waste disposal only as a last option.
 - b. Scrap metal shall be donated or sold to scrap dealers or recycle centers whenever possible.
- C. No excess materials shall be deposited within Government property unless compliance is confirmed by the Government.
- D. The Contractor shall maintain work and storage areas free from accumulations of waste materials and rubbish and before completing the work, shall remove all temporary facilities, including, buildings, unused materials, concrete forms, and other like materials, which are not a part of the permanent work.

2.4 Warranty

- A. Warranties shall be provided in accordance with FAR 52.212-4(o).
- B. The Contractor shall warrant that work performed under this PWS conforms to the Contract requirements and is free of any defect in equipment, material, or workmanship performed by the Contractor or any subcontractor or supplier at any tier for a period of at least **one (1)** year.
 1. The Contractor is responsible for providing warranties on items when the manufacturer's warranty is less than the time indicated in Paragraph 2.4C or when the manufacturer's warranty does not cover full repair and/or replacement as appropriate.
- C. The Contractor shall obtain warranties from responsible subcontractors, suppliers, and manufacturers, within sixty (60) working days after completion of the applicable item of work, but no later than the date of warranty commencement.
- D. The starting date of the warranty is the date of Government acceptance of the work.
- E. A warranty requires that if a warranted item fails to meet Contract requirements, it shall be repaired, replaced, or have other remedial actions taken to bring the item into compliance with the Contract requirements. Any item damaged due to failure or malfunction of item warranted under this Contract shall be repaired or replaced at no cost to the Government.
- F. The Contractor shall supply the CO with a telephone number, mailing address, email address, and contact name for the point of contact for any required warranty work.

SECTION 3 EXISTING CONDITIONS

3.1 General

- A. Falcon Power Plant includes a power station with three (3) hydroelectric generating units rated at 10.5 MW each. Power at the plant was first generated commercially in 1954.
- B. The current Power Transformers were installed in the 1950's, but most of the Protective Breakers were upgraded 15 years ago.
- C. Each of the three hydro generators are rated at 11,667kVA, 0.9 P. F, (10.5MW), 6.9kV, 164 rpm with a 60°C rise above a 40°C ambience. At rated output, the armature current is 975 Amps. These



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generators were manufactured to comply with the American National Standards Institute, Inc. (ANSI) standard C50.12 in effect at that time which included a 115 percent overload capability.

- D.** Existing Amistad Power Plant Electro-Mechanicals Equipment has been in service for more than 40 years, and equipment needs to be tested due to malfunctions and safety issues. This equipment is very important to daily power generation on the Amistad Power Plant. There have been instances where current Electro-Mechanical Protective Devices don't work properly/safe and are required to be cleaned and calibrated to work functionally and protect the Hydro-Generators and Transformers. Without any upgrade for the last 40 years.
- E.** Amistad Power Plant includes a power station with two (2) hydroelectric generating units rated at 34.5 MW each. Power at the plant was first generated commercially in 1979
- F.** Amistad Power Plant current Power Transformers were installed in the late 1970's, but only 138 KV OCB Protective Breakers was installed in 1979..

3.2 Government Furnished Utilities

- A.** The Government will not be furnishing any utilities for this project including, but not limited to electricity, telephone, sewer, and natural gas.

3.3 Use of Government Land

- A.** USIBWC property is available for use as the Contractor's staging and/or storage areas, subject to the approval of the COR. The Contractor shall preserve and protect existing features, trees, and vegetation to the maximum extent practicable.
- B.** Housing for Contractor personnel will not be permitted on Government land.

3.4 Hazardous Materials

- A.** The Contractor is responsible for evaluating the existing systems to determine the presence of lead or asbestos-containing materials.
- B.** The Contractor shall provide a finding report to the COR to include a plan for handling and proper disposal of lead and/or asbestos-containing materials prior to the removal of the existing systems.



SECTION 4 QUALITY REQUIREMENTS

4.1 Common Product Requirements

A. Materials Certification

The Contractor shall submit a materials certification package to COR which contains a checklist and supporting documentation for all materials used on the project. The supporting documentation shall consist of a summary of all documentation practices utilized for material acceptance and explanations of any deficiencies noted on the checklist.

1. Material certifications shall ensure that all items meet the Buy American Act (41 USC 10a - 10d).

B. Source Control

1. The Contractor shall use only materials that meet the Contract requirements.
2. Unless otherwise specified or compliance confirmed, the Contractor shall use new materials for the work. Material can be reused onsite upon written approval of COR.
3. All materials installed shall be free of defects.
4. The Contractor shall secure the Government's compliance confirmation of the proposed source of materials to be used before their delivery.

C. Quality Control / Quality Assurance of Materials

1. Source Limitations

To the greatest extent possible for each item of work, the Contractor shall provide materials of a singular generic kind from a single source.

2. Compatibility of Options

Where more than one choice is available as an option for Contractor's selection of a product, material, or equipment, the Contractor shall select an option which is compatible with other products, materials, or equipment. Compatibility is a basic general requirement of product, material, and equipment selections.

3. Field Measurements

Verify field measurements, lines, grades, locations, and details at the jobsite prior to fabrication. It shall be the Contractor's responsibility to conform to and satisfy actual field conditions, for accuracy of dimensions, proper fit, and for adequacy of use intended.

4. The Contractor shall correct or remove materials that fail to meet Contract requirements or that do not produce satisfactory results. The Contractor shall reimburse the Government for cost incurred if additional quality assurance sampling and testing is required by a change of source.

5. Materials not meeting Contract requirements will be rejected, unless the Government approves corrective actions in writing. Upon rejection, the Contractor shall immediately remove and replace rejected materials. Should the Contractor fail to comply with the removal of rejected



materials, the Government may remove and replace defective material and the cost of testing, removal, and replacement will be deducted from the Contractor's final payment.

D. Hazardous Materials

The Contractor shall use materials that are free of hazardous materials. The Contractor shall notify the Government immediately when a visual observation or odor indicates that materials in required material sources or on sites owned or controlled by the Government may contain hazardous materials.

E. Surplus Materials

1. The Contractor shall not take ownership of surplus materials unless otherwise indicated in the Contract documents.
2. The Contractor shall remove and dispose all materials.

F. Storage and Protection

1. Designate receiving/storage areas for incoming products so that they are delivered according to installation schedule and placed convenient to work area to minimize waste due to excessive materials handling and misapplication.
2. Store and protect products in accordance with manufacturers' instructions.
3. Store with seals and labels intact and legible.
4. Prevent contact with material that may cause corrosion, discoloration, or staining.
5. Provide equipment and personnel to store products by methods to prevent soiling, disfigurement, or damage.
6. The Contractor shall store and handle materials to preserve their quality and fitness for the work and shall store materials so that they can be easily inspected and retested. When required by the Government, the Contractor shall protect the material with cover, on wooden platforms, or on other hard, clean surfaces as necessary.

SECTION 5 DELIVERABLES

5.1 General

A. Deliverables include, but are not limited to:

1. Project Schedule
 - a. Project Schedule is to be delivered to COR within seven (7) Calendar Days of contract awarded.
2. Testing Program
 - a. The Contractor shall provide to the COR a plan outlining the procedures to perform this project with minor interruption to the power plant's daily operations.
3. Testing Report
 - a. The Contractor shall provide a Testing Report electronic file (PDF format).
4. Safety Documents



SECTION 6 PROJECT COORDINATION & ADMINISTRATION

6.1 General

- A. The Contractor shall provide all materials, testing equipment, labor, and services required by this Performance Work Statement to perform the work for the Contract sum and within the Contract period of performance.
- B. The Contractor shall be responsible for ensuring that all its suppliers, manufacturers and subcontractors have reviewed all applicable documents relative to their work. The Contractor shall provide all labor, material, equipment, and services not provided by the Contractor's suppliers, manufacturers, fabricators, and/or subcontractors.

6.2 Security

The Contractor is responsible for securing the work site, equipment, and materials from vandalism and theft.

6.3 Safety

- A. The Contractor is solely responsible for worksite safety while performing work or inspections on Government property. The Contractor shall implement a safety program that protects the lives and health of personnel in the project area, prevents damage to property, and avoids work interruptions. The Government is not responsible for accidents or injuries sustained by Contractor employees, guests, or invitees of the Contractor, its agents, or its subcontractors, unless the accident was directly caused by the authorized action of a government employee in the performance of his/her duties.
- B. The Contractor is responsible for being cognizant of and ensuring compliance with the requirements set forth. Such responsibility shall apply to both the Contractor's operations and those of the Contractor's subcontractors.
- C. The Contractor shall comply with all provisions of all applicable regulations of the Occupational Safety and Health Administration (OSHA), 29 CFR 1910, Occupational Safety and Health Standards, and 29 CFR 1926, Construction Standards.
 - 1. The OSHA 29 CFR 1910 and 29 CFR 1926 can be accessed at <http://www.osha.gov> or <http://www.gpo.gov/fdsys/>.
- D. The Contractor's personnel shall be required to use appropriate personal protective equipment such as, but not limited to hard hats, safety goggles, welding shields, face shields, protective footwear, protective gloves, and hearing protection.
- E. The Contractor shall perform daily housekeeping. The Government will not provide trash dumpsters.



SECTION 7 PROJECT MEETINGS

7.1 General

- A.** The Contractor, the COR, or the CO may schedule project meetings at any time.
- B.** When USIBWC schedules a meeting, the COR shall inform participants and others involved and individuals whose presence is required of date and time of each meeting. The COR shall prepare the meeting agenda and distribute it to all invited attendees.
- C.** When the Contractor schedules a meeting, the Contractor shall inform participants and others involved and individuals whose presence is required of date and time of each meeting. The Contractor shall prepare the meeting agenda and distribute it to all invited attendees.
- D.** The following meetings are anticipated, and the Contractor shall identify them in the Schedule:
 - 1. Kickoff Meeting
 - 2. Progress Meetings

7.2 Kickoff Meeting

- A.** After award of the Contract, the COR will coordinate with the Contractor to schedule a Kickoff Meeting. The meeting shall take place prior to the beginning of any Contract work.
- B.** The purpose of the meeting is to introduce project personnel and to review responsibilities and procedures.
- C.** The Contractor shall reach an understanding with the Government regarding the project requirements as stated in this Performance Work Statement. This understanding shall be documented in writing and approved by the CO after the Kickoff Meeting.
- D.** Attendees include, but are not limited to:
 - 1. Contractor's Project Manager
 - 2. CO
 - 3. COR
 - 4. Falcon Power Plant Representative
 - 5. It is recommended that Contractor's engineers, inspectors, subcontractors, suppliers, and other parties concerned also attend the conference. The Contractor may invite anyone they wish to this meeting.
 - 6. All participants at the conference shall be familiar with the project and authorized to conclude matters relating to the work.



E. Agenda

Discussion of items of significance that could affect the work and project, including the following:

1. Introduction/designation of key personnel and their duties.
2. Review of the current phasing, critical work sequencing, and long-lead items.
3. Review of minimum project requirements.
4. Review of procedures for handling and processing modifications, RFIs, deliverables, and applications for payment.
5. Preparation of deliverable documents.
6. Use of site.
7. Work restrictions.
8. USIBWC and other's occupancy requirements.
9. Safety and first aid.
10. Security.
11. Maintenance of project site.
12. Working hours.

F. Meeting Minutes

The COR will record the discussions of the meeting and distribute the minutes to all attendees for review prior to finalizing.

7.3 Progress Meetings

- A.** If needed, the COR will schedule progress meetings once the Contractor has mobilized onsite. The COR will conduct and issue minutes of the meetings. Meeting minutes will become official Contract correspondence.
- B.** The Government may call other meetings on an "as needed" basis.
- C.** The purpose of these meetings shall be to analyze the progress of the work, resolve conflicts, and in general coordinate the operation of all organizations active at the project site.

SECTION 8 PROJECT SCHEDULE

8.1 Description / Purpose

- A.** The Contractor shall prepare a project schedule which shall reflect completion of all work under this Performance Work Statement.
- B.** Project schedule submittal shall include an electronic pdf file.
 1. All abbreviations shall be defined.
 2. Each project schedule shall show a revision date.
- C.** Baseline Schedule Preparation



Prepare a list of all activities required to complete the work. The baseline schedule shall include all planned work activities and sequences and show Contract completion within the number of calendar days specified in the Contract.

a. Activities

Prepare a list of all activities required to complete the work. Indicate the estimated duration, sequence requirements, and relationship of each activity in relation to other activities.

b. Time Frame

The proposed duration assigned to each activity shall be the Contractor's best estimate of time required to complete the activity considering the scope and resources planned for the activity.

SECTION 9 REGULATORY REQUIREMENTS

9.1 Contractor's Responsibility

- A.** It is the Contractor's responsibility to perform work in compliance with all applicable requirements of federal, state, and local laws, codes, rules, regulations, ordinances, and standards, including, but not limited to, those outlined in 9.4 below.
- B.** It shall be the responsibility of the Contractor to acquire copies of all applicable codes, regulations, and standards for ready reference.
- C.** In instances where requirements are in conflict, the stricter standard shall apply.
- D.** All inspections, observations, or tests required for code compliance are the responsibility of the Contractor.

9.2 Permits

- A.** Prior to the beginning of work, the Contractor shall be responsible for researching, coordinating, obtaining, and paying all applicable fees for all permits required by Federal, state, and local entities. The Government is not responsible for any existing or newly introduced permits required before, during and/or after work on this project.
- B.** The Contractor shall be responsible for and shall give and maintain all notices required by applicable regulations, laws, or permitting authorities pertaining to work on this project.

9.3 Dates

- A.** For all related standards and regulatory requirements in this document, the version, edition, or year shown indicates the governing version.



- B.** All Public Laws, Code of Federal Regulations (CFR), Federal Acquisition Regulation (FAR), Executive Orders (EOs), Management Policies, Government Directives, Government Standards, refer to the original document as well as any subsequent amendments, corrections, and/or additions.
1. The latest amendments, corrections and additions are to be assumed applicable in the same way as the document itself.
 2. The version in effect as of the issuing date of the Solicitation for this project governs unless the law, regulation, order, policy, directive, or standard is updated with a retroactive clause.

9.4 Summary of Regulatory Documents and Agencies

Regulatory requirements applicable to this project include, but is not limited to, the items listed below.

- A.** Institute of Electrical and Electronics Engineers (IEEE)
1. 2017 National Electrical Safety Code (NESC)
- B.** National Fire Protection Association (NFPA)
1. NFPA 70-2017 Standard for Electrical Safety in the workplace (also known as the National Electrical Code [NEC]), with Errata through 70-17-4 and TIA through 17-4
- C.** Occupational Safety and Health Administration (OSHA)
1. Occupational Safety and Health Standards (29 CFR 1910)
 - a. <https://www.osha.gov/law-regs.html>
- D.** Public Laws and Acts
All Public Laws and Acts can be found at <http://www.gpo.gov/fdsys/>
1. Buy American Act [41 USC 10a - 10d]
 2. National Environmental Policy Act (NEPA) [42 USC 4321-4347]
 3. Resource Conservation and Recovery Act (RCRA)
 4. Solid Waste Disposal Act
 5. Toxic Substance Control Act
- E.** State of Texas
1. Texas Engineering Practice Act and Rules Concerning the Practice of Engineering and Professional Engineering Licensure
 - a. <http://www.tbpe.state.tx.us/downloads/law&rules.pdf>



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SECTION 10 MEASUREMENTS AND PAYMENTS

10.1 USIBWC Payment Processing

- A.** The Contractor shall submit invoices via the Invoice Processing Platform (IPP) System. Further information on IPP will be provided at the time of award.
- B.** The invoice for this Contract shall not be combined with any other work or other Contracts; it shall be for this Contract only.

10.2 Invoices

- A.** USIBWC Payment Processing
- B.** A. The Contractor shall submit an electronic invoice pursuant to FAR 5.212-4(g) to be processed via the IPP system at www.ipp.gov. B. A copy of the invoice shall be emailed to the CO and COR concurrently.
- C.** C. The invoice for this Contract shall not be combined with any other work or other Contracts; it shall be for this Contract only.

--End of Performance Work Statement--